AS-IS MOBILE HOME PURCHASE AND SALE AGREEMENT

THIS AGREEMENT is entered into this _____ day of _____, 20_____, by and between _____("Seller") and _____ ("Purchaser").

WHEREAS, the home is being sold by Seller to Purchaser for a discounted purchase price;

WHEREAS, in exchange for the discounted purchase price Seller wishes to obtain assurance from Purchaser that the home will remain in the Park for a specified number of years; and

WHEREAS, the Home is being sold by Seller to Purchaser "As Is, Where Is" and without any warranty or guarantee by Seller.

NOW, THEREFORE, in consideration of the above and of the following terms and conditions, Seller and Purchaser agree that as of the date of Purchaser's execution of this Agreement:

1. Seller hereby sells to Purchaser a mobile home (Vin/Serial No. _____) located at _____ ("the Home") in _____ ("the Park") for

   A. Total Purchase Price of _____ Dollars ($_____).

   B. To be purchased via ☐ cash or ☐ financing.

   C. Deposit in the amount of _____ Dollars ($_____) (Check One) ☐ accompanies offer or ☐ to be made within _____ days of Agreement Date, to be deducted from Total Purchase Price.

      i. Agreement is contingent upon (check applicable) ☐ receiving Park approval; ☐ receiving lender financing approval within 10 days of Agreement Date.

   D. Closing shall occur on or before the _____ day of _____, 20_____, at which time, Purchaser agrees that payment shall be made immediately and in full via a cashier's check or bank issued wire provided to the Seller. Upon receipt of payment in full, Seller shall convey to Purchaser title to the mobile home free of all encumbrances in furtherance of the transfer to Purchaser of title to the mobile home.

2. Purchaser agrees to pay for all applicable fees relating to the transfer of title of the home into Purchaser's name. Seller agrees to submitting the required transfer documents to the title company; however, Purchaser agrees to pay Seller for all fees related to same.

3. Home to Remain in the Park. Purchaser agrees not to remove the mobile home from the Park.

4. Property Condition. Purchaser acknowledges that the subject Home is in satisfactory condition and is purchased **"AS IS". EXCEPT FOR THE REPRESENTATIONS AND WARRANTIES OF SELLER EXPRESSLY SET FORTH IN THIS AGREEMENT OR IN ANY OTHER DOCUMENT EXECUTED PURSUANT TO THIS AGREEMENT, IF ANY, PURCHASER WARRANTS AND ACKNOWLEDGES TO AND AGREES WITH SELLER THAT PURCHASER IS PURCHASING THE HOME IN ITS "AS-IS, WHERE IS" CONDITION "WITH ALL FAULTS" AS OF DATE OF EXECUTION HEREOF AND SPECIFICALLY AND EXPRESSLY WITHOUT ANY WARRANTIES, REPRESENTATIONS OR GUARANTEES, EITHER EXPRESS OR IMPLIED, AS TO ITS CONDITION, FITNESS FOR ANY PARTICULAR PURPOSE, MERCHANTABILITY, OR ANY OTHER WARRANTY OF ANY KIND, NATURE, OR TYPE WHATSOEVER FROM OR ON BEHALF OF SELLER. EXCEPT FOR THE REPRESENTATIONS AND WARRANTIES OF SELLER EXPRESSLY SET FORTH IN THIS AGREEMENT OR IN ANY OTHER DOCUMENT EXECUTED PURSUANT TO THIS AGREEMENT, SELLER SPECIFICALLY DISCLAIMS ANY WARRANTY, GUARANTY OR REPRESENTATION,ORAL OR WRITTEN, PAST OR PRESENT, EXPRESS OR IMPLIED, CONCERNING (A) THE VALUE, NATURE, QUALITY OR CONDITION OF THE HOME, (B) THE SUITABILITY OF THE HOME FOR ANY AND ALL ACTIVITIES AND USES WHICH PURCHASER MAY CONDUCT THEREIN, (C) THE COMPLIANCE OF OR BY THE HOME WITH ANY LAWS, RULES, ORDINANCES OR REGULATIONS OF ANY APPLICABLE GOVERNMENTAL AUTHORITY OR BODY, (D) THE HABITABILITY, MERCHANTABILITY, MARKETABILITY, PROFITABILITY OR FITNESS FOR A PARTICULAR PURPOSE OF THE HOME, (E) THE MANNER OR QUALITY OF THE CONSTRUCTION OR MATERIALS, IF ANY, INCORPORATED INTO THE HOME, (F) THE MANNER, QUALITY, STATE OF REPAIR OR LACK OF REPAIR OF THE HOME, (G) THE PRESENCE OR ABSENCE OF HAZARDOUS MATERIALS IN THE HOME OR ANY OTHER ENVIRONMENTAL MATTER OR CONDITION OF THE HOME, INCLUDING BUT NOT LIMITED TO ASBESTOS OR MOLD (H) THE LEASES OR OTHER AGREEMENTS AFFECTING THE HOME, OR (H) ANY OTHER MATTER WITH RESPECT TO THE HOME. PURCHASER ACKNOWLEDGES AND AGREES THAT, EXCEPT FOR THE REPRESENTATIONS AND WARRANTIES OF SELLER CONTAINED IN THIS AGREEMENT OR IN ANY OTHER DOCUMENT EXECUTED PURSUANT TO THIS AGREEMENT, ANY INFORMATION PROVIDED BY OR ON BEHALF OF SELLER WITH RESPECT TO THE HOME WAS OBTAINED FROM A VARIETY OF SOURCES AND THAT SELLER HAS NOT MADE ANY INDEPENDENT INVESTIGATION OR VERIFICATION OF SUCH INFORMATION AND MAKES NO REPRESENTATIONS OR WARRANTIES AS TO THE ACCURACY OR COMPLETENESS OF SUCH INFORMATION. SELLER SHALL NOT BE LIABLE OR BOUND IN ANY MANNER BY ANY ORAL OR WRITTEN STATEMENTS, REPRESENTATIONS OR INFORMATION PERTAINING TO THE HOME FURNISHED BY ANY REAL ESTATE BROKER, AGENT, EMPLOYEE, SERVANT OR OTHER PERSON EXCEPT FOR THE EXPRESS REPRESENTATIONS AND WARRANTIES SET FORTH IN THIS AGREEMENT OR IN ANY OTHER DOCUMENT EXECUTED PURSUANT TO THIS AGREEMENT. PURCHASER FURTHER ACKNOWLEDGES AND AGREES THAT PURCHASER HAS HAD THE OPPORTUNITY TO BE REPRESENTED BY COUNSEL IN CONNECTION WITH THE NEGOTIATION OF THIS AGREEMENT. SELLER HAS MADE NO AGREEMENT TO ALTER, REPAIR OR IMPROVE THE HOME OR ANY PORTION THEREOF.**

5. Prior to and/or contracting to purchase as appropriate, Purchaser(s) have been given and will continue to have until closing, a reasonable opportunity to inspect and investigate the Home and all fixtures and improvements therein, either independently or through agents of Purchaser(s) choosing. Purchaser(s) shall not be entitled to, and should not rely on the Seller, or its agents, employees, sales persons, managers or any other person as to: (A) the quality, nature, adequacy and physical condition of the Home including, but not limited to, the structural elements, frame, chassis, roof, appurtenances, access, electrical, A/C, plumbing, sewage, and utility systems, facility and appliances, contamination from termites, black mold, lead paint or any other or unknown substance which may or may not be deemed unhealthy, (B) the habitability, merchantability, or fitness, suitability or adequacy of the home for any particular purpose, (C) the legal status of the home, (D) the home's compliance with applicable codes, laws, regulations, statutes, ordinances, covenants, conditions and restrictions of any governmental, quasi-governmental entity or any other person or entity, (E) the

quality of any labor and materials, (F) the compliance of the home with any environmental protection, pollution or land use laws, rules, regulations, orders of requirements including but not limited to those pertaining to the handling, generating, heating, storing, or disposing of any hazardous materials, and (G) condition of title to the home and the nature, status, and extent of any, lien, encumbrance license, reservation, covenant, condition, restriction and any other matter affecting that title.

A. Although Seller or Seller's predecessors may have performed work, or contracted for work performed by third parties in connection with the Home, Seller, and its agents shall not be responsible to Purchaser(s) or any successor on account of any errors or omissions or construction defects of such predecessors and/or third parties.

B. Purchaser(s) should inspect thoroughly the entire home, including but not limited to the frame, chassis, plumbing, electrical, flooring, walls, bathroom fixtures, kitchen cabinets, appliances, counters, sink, flooring, lighting, windows, screens, walls, ceilings, air conditioning system, including ductwork, carpeting, tile, window treatments, roof, hitch, wheels and axles, all electrical connections, wiring, electrical receptacles, sewer lines, pressure water lines, closets, doors and doorways, as well as any personal property included in the sale of the property. Because this sale is an "As-is" "Where-is" sale the Purchaser(s) is entirely responsible for deciding to purchase the Home and to determine the condition and suitability of the Home. Seller will accept no responsibility for any warranties of the Home, condition of the Home or any other aspect of the Home, including but not limited to the items listed in this paragraph.

C. **PURCHASER(S) HAS HAD A FULL OPPORTUNITY TO INSPECT THE HOME AND TO RETAIN LICENSED PERSONS TO PROVIDE ANY INFORMATION NEEDED ON THOSE MATTERS SET FORTH IN PARAGRAPHS (A) THROUGH (G) ABOVE PRIOR TO ENTERING INTO THE PURCHASE AGREEMENT OF THE HOME. BECAUSE THE HOME IS REQUIRED TO REMAIN IN THE PARK UNDER THIS CONTRACT, BOTH THE HOME AND THE LOT TO BE OCCUPIED SHOULD BE INSPECTED AND APPROVED.**

6. Purchaser is neither presently relying nor will subsequently rely on any representation or warranties of merchantability or trade, other than those which may be specifically contained herein, from the Seller, or agents of the Seller, with regard to the value or physical condition of the Home and any undocumented rights and benefits that will accrue to Purchaser. **PURCHASER UNDERSTANDS THAT THERE MAY BE UNSEEN FAULTS, INCLUDING, BUT NOT LIMITED TO, WATER DAMAGE, MOISTURE ACCUMULATION, AND/OR MOLD, MILDEW, OR OTHER NATURALLY OCCURRING PHENOMENA. IF PURCHASER IS CONCERNED ABOUT ANY OF THESE ITEMS OR ANY OTHER POSSIBLE FAULTS, PURCHASER SHOULD HAVE THE HOME INSPECTED.**

7. Insurance – Purchaser shall at its sole expense, provide and keep in force, any insurance coverage on the Home as desired by Purchaser, including fire and windstorm insurance. Seller shall not provide any insurance on the Home or the fixtures therein or contents thereof.

8. Waiver. Seller shall not be liable for any loss, injury, death, or damage to persons or property which may be suffered by Purchaser or by any person whosoever may be using, occupying or visiting

the Home, whether such loss, injury, death, or damage shall be caused by or in any way result from or arise out of any act, omission, or negligence of the Seller or of any occupant, subtenant, contractor, subcontractor, visitor, or user of any portion of the Home, or shall result from or be caused by any other matter whether of the same kind as or of a different kind than the matters above set forth. Purchaser shall indemnify Seller against all claims, liability, loss, or damage whatsoever as described herein including but not limited to costs, counsel and investigation fees, expenses and liabilities.

9. Seller shall have a lien on the Home to secure the payment of all sums of money due from the Purchaser to Seller under this Agreement and all damages, costs and expenses provided for under this paragraph. Such lien may be enforceable by foreclosure.

10. Purchaser agrees to all terms and conditions required to establish a valid tenancy at the Park, including any required documents which may be provided to Purchaser by Seller and any rules and regulations governing tenancies in the Park, and releases Seller and its officers, agents, employees or representatives, successors and assigns from any cause of action of any kind, including contract, tort, statutory or other, and any suits, debts, sums of money, accounts, bills, covenants, agreements, promises, variances, trespasses, damages, claims or demands of any kind whatsoever in law or equity arising from that tenancy.

11. Purchaser agrees that any personal property left by the prior owner of the home on the mobile home lot or elsewhere in the Park shall be the property of Seller, and that by execution hereof Purchaser waives any and all rights which otherwise might exist as to such property.

12. Purchaser acknowledges and agrees that he will first notify and receive approval from Park Owner prior to allowing any other persons to reside in the home. Any additional persons who will live in the home must first file an application for residency, complete a criminal background check, and must be approved by Seller in writing prior to occupying the home. Seller reserves the right to refuse occupancy to any persons for any reasons permitted by applicable law.

13. This Agreement represents the entire understanding of the parties with respect to the subject matter hereof, and supersedes all prior or contemporaneous agreements or understandings whether oral or written. No termination, waiver, or amendment of this agreement shall be binding unless in writing and signed by all of the parties hereto.

14. In the event that any section, paragraph, or subparagraph of this Agreement is held unenforceable by any court, this Agreement shall be deemed to have been executed by the parties hereto with such sections, paragraph, or subparagraphs not having been included herein, and the remainder of the Agreement shall not be void thereby.

15. It is the intention of Seller and Purchaser that the laws of our state govern this Purchase Contract, the construction of its terms, and the interpretation of the rights and duties of the Seller and Purchaser.

IN WITNESS WHEREOF, the parties have executed this Agreement to Purchase Home as of the day and year first above written.

STATE OF _____ COUNTY OF _____

Seller(s) Signature(s)

_____ Date_____

_____ Date_____

Printed Name(s) & Forwarding Address (if applicable)

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_____

Purchaser(s) Signature(s)

_____ Date_____

_____ Date_____

Printed Name(s) & Current Address

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